Appendix C1 to the General Conditions of Tender

(General Conditions of Tender Clause GCT 19(2))

Letter of Indemnity

To : The Government of the Hong Kong Special Administrative Region

From : [ ]

Date : [ ]

Dear Sirs,

Letter of Indemnity for Contract No. HY/2022/14

Contract Title : Modification Works of Noise Barriers along Yuen Long Highway near Park Signature

I/We refer to my/our tender ("the tender") for the above Contract.

In consideration of your agreeing to consider the tender I/we hereby irrevocably and unconditionally agree to indemnify you against all losses, liabilities, damages, costs, legal costs, professional and other expenses of any nature whatsoever which you have incurred or suffered as a result of the violation of General Conditions of Tender Clause 19(2) by me/us and/or any person authorized or licensed by me/us. [We agree that we shall be jointly and severally liable for our obligations under this letter of indemnity and all references to "we" shall take effect as references to all of us or any of us and the words "us" and "our" shall be construed accordingly.][*] I/We hereby represent that, with respect to my/our obligations, liabilities or any other matter under or arising out of or in connection with this letter of indemnity, neither I/we nor any of my/our properties or assets have, in the Hong Kong Special Administrative Region, or in any other jurisdiction, any right of immunity on the grounds of sovereignty or otherwise from any legal action, suit or proceedings; from the giving of relief in any legal action, suit or proceedings; from set-off or counterclaim; from the jurisdiction of any court, in the Hong Kong Special Administrative Region or in any other jurisdiction; from service of process upon us or any agent; from attachment prior to judgment in order to obtain satisfaction thereof; from attachment after judgment or from execution or any other process for the endorsement of any judgment or other legal process in any jurisdiction; and to the extent that I/We am/are or become entitled to any immunity as aforesaid, in the Hong Kong Special Administrative Region or in any other jurisdiction with respect to my/our obligations, liabilities or any other matter under or arising out of or in connection with this letter of indemnity, I/we hereby and will irrevocably and unconditionally waive and agree not to plead or claim any such immunity. I/We further consent to the giving of any relief in any legal action, suit or proceeding and to execution and or any other form of process for the enforcement of any judgment against me/us or my/our assets.

[We acknowledge that we comprise all the participants of (name of the tenderer)][*]

This letter of indemnity shall be governed by and construed in all respects according to the laws for the time being in force in the Hong Kong Special Administrative Region and I/We hereby submit to the non-exclusive jurisdiction of the courts of the Hong Kong Special Administrative Region.

[*] For use where the tenderer is an unincorporated joint venture

(a) *Alternative A (with Common Seal)*[1]

Executed and delivered)
as a deed and the COMMON SEAL)
of [name of Contractor])
was affixed in the presence of)
[ ] its [director(s) or)
director and secretary or person(s) authorized to)
sign the contract by its board of directors][2])
in the presence of a witness:)
)
……...)

[Signature of the director(s) etc][1]

Common Seal

[Name])
[Occupation])
[Address])

Alternative B (without a Common seal)[1]

Executed and delivered)
as a deed)
by [name of Contractor])
acting through)
[ ] (its sole director))
or)
[ ] and [ ] (its directors))
or)
[ ] (its director) and)
[ ] (its company secretary)[2])
in the presence of a witness:)
)
……...)

[Signature of the director(s) etc][1]

[Name])
[Occupation])
[Address])

(b) SIGNED, SEALED AND DELIVERED by)
[name of Contractor] by [ ])
his/her/its[3] attorney under power of attorney)
dated [ ])
)
in the presence of :)
)
……...)

[Signature of the attorney][1]

L.S

[Name])
[Occupation])
[Address])

Note:
(a) For use where executed by company incorporated in Hong Kong.
(b) For use where executed by under power of attorney.

* For use where the tenderer is an unincorporated joint venture.
[1] The italic parts are not part of the execution clause. They are for guidance or information only.
[2] Select the correct expression for use. If none is applicable, insert an appropriate expression.
[3] Delete whichever is inappropriate.

[BLANK PAGE]